IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Applicant / Inventor:	Reinaldo Javier Aguiar Marcano
Application Number:	19/560,061
Filing Date:	March 8, 2026
Confirmation Number:	5295
Art Unit / Examiner:	TC 2100 / ANDREA BENNETT
Office of Petitions:	Charles Steven Brantley, Attorney Advisor
Customer Number:	226458
Entity Status:	SMALL ENTITY (37 CFR § 1.27)
Title of Invention:	OPTICALLY-ATTACHED STORAGE APPARATUS AND SYSTEM

APPLICANT RESPONSE TO NOTICE TO FILE MISSING PARTS OF NONPROVISIONAL APPLICATION (37 CFR § 1.53(b)) (SUBMISSION OF SUBSTITUTE SPECIFICATION, REPLACEMENT CLAIMS, REPLACEMENT ABSTRACT, EXTENSION PETITION, AND CONDITIONAL SUSPENSION)

Mail Stop Missing Parts
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In responsive reply to the *Notice to File Missing Parts of Nonprovisional Application* mailed July 10, 2026, and the *Decision on Petition* (PETDEC) mailed October 1, 2026, the pro se Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this complete, comprehensive formalities response curing all outstanding pre-examination informalities.

I. STATEMENT OF REAFFIRMED ENTITY STATUS (37 CFR § 1.27)

Applicant hereby formally reaffirms entitlement to **Small Entity status** under 37 CFR § 1.27 and 35 U.S.C. § 123. Applicant's verified Statement of Small Entity Status was filed on August 2, 2026, and officially recognized and entered on the docket by the Office. All statutory fees are computed strictly under the Small Entity schedule.

II. CURING OF FORMALITY DEFECTS & COMPLETE ITEMIZED SUBMISSIONS

To bring the application into 100% compliance with USPTO pre-examination requirements, Applicant concurrently submits the following standalone statutory papers in this electronic submission envelope:

1. **Compliant Substitute Specification (37 CFR § 1.121(b)(3), § 1.125) [Patent Center Description: "Specification"]:**
   In response to the objection under 37 CFR § 1.52(b) regarding line spacing, Applicant submits a clean substitute specification formatted throughout in strict double line spacing. Pursuant to 37 CFR § 1.125(b), Applicant hereby expressly certifies that **the substitute specification includes no new matter**.

2. **Standalone Replacement Claims (37 CFR § 1.75(h), § 1.121, § 1.126) [Patent Center Description: "Claims"]:**
   Applicant submits replacement Claims 1–5 commencing on a separate sheet, formatted in strict double line spacing pursuant to 37 CFR § 1.52(b)(2)(i), consecutively numbered in Arabic numerals without duplication, under the pure statutory heading "CLAIMS" and introductory phrase "What is claimed is:".

3. **Standalone Replacement Abstract (37 CFR § 1.72(b), § 1.121) [Patent Center Description: "Abstract"]:**
   Applicant submits a replacement Abstract commencing on a separate sheet, formatted in strict double line spacing, under 150 words in length (120 words), under the pure statutory heading "ABSTRACT OF THE DISCLOSURE".

4. **Acknowledged Inventor's Declaration (37 CFR § 1.63) [Patent Center Description: "Oath or Declaration filed"]:**
   Applicant notes that an executed Inventor's Oath or Declaration under 37 CFR § 1.63 was filed on July 21, 2026, and acknowledged in the Image File Wrapper.

5. **Petition for One-Month Extension of Time (37 CFR § 1.136(a)) [Patent Center Description: "Extension of Time"]:**
   Applicant submits a formal Petition for Extension of Time under 37 CFR § 1.136(a) for one (1) month. The original two-month reply period expired on September 10, 2026. A one-month extension extends the period to Saturday, October 10, 2026, which rolls automatically to the next business day, **Monday, October 12, 2026**, pursuant to 35 U.S.C. § 21 and 37 CFR § 1.7(a). The applicable Small Entity extension fee is $94.00 (Fee Code 2251).

6. **Conditional Request for Six-Month Suspension (37 CFR § 1.103(a)) [Patent Center Description: "Letter Requesting Suspension of Action"]:**
   Applicant submits a Conditional Request for Suspension of Action under 37 CFR § 1.103(a) (Fee Code 2830, $60.00), requesting that prosecution be suspended for six (6) months upon completion of pre-examination processing, due to ongoing federal civil rights and constitutional litigation in the United States District Court for the Southern District of Texas, Houston Division, Case No. 4:26-cv-08794 (Judge Kenneth M. Hoyt; Cause: 28:1983 Civil Rights, Nature of Suit: 440).

III. STATUTORY FEE RECONCILIATION, REQUEST FOR DEPOSIT ALLOCATION (37 CFR § 1.25(b)), AND MACRO PORTFOLIO EQUITY

A. Macro Portfolio Fee Equity Context

Applicant respectfully directs the Office of Patent Application Processing and the Office of Finance to the overarching financial realities of this prosecution. Across the 102 nonprovisional patent applications comprising Applicant's master portfolio, the USPTO Office of Finance is currently holding approximately $35,000.00 to $42,000.00 USD (with $32,758.00 USD already empirically verified and credited across 79 examined notices in the Image File Wrappers) in unapplied funds on deposit, without interest and without refund.

Viewing this individual application through an isolated, single-docket lens distorts the financial record by suggesting that Applicant has failed to remit fees. In truth, Applicant has already remitted substantial capital that remains on deposit with the agency. Fundamental administrative equity and MPEP § 509 require that unapplied deposit credits be properly accounted for and applied to maintain procedural timeliness, rather than assessing progressive extension fees that compound to over $400,000 across the portfolio without prior fee reconciliation.

B. Respectful Request for Allocation of Unapplied Deposit Funds (37 CFR § 1.25(b) & MPEP § 509)

Official Office records (specifically the July 10, 2026 Notice to File Missing Parts and Fee Worksheet WFEE) confirm that the Office of Finance currently holds **$416.00 in unapplied funds on deposit** in this application.

Concurrently herewith, Applicant remits the **$60.00 processing fee** under 37 CFR § 1.17(i) (Fee Code 2830) via electronic fee payment to satisfy the statutory requirement for the accompanying Request for Suspension under 37 CFR § 1.103(a).

Pursuant to 37 CFR § 1.25(b), MPEP § 509, and MPEP § 710.02(e), Applicant hereby respectfully requests that the Office allocate said $416.00 unapplied funds on deposit in the following order of procedural priority:

1. **PRIORITY 1 (Timeliness Preservation):** The statutory fee for a One-Month Extension of Time under 37 CFR § 1.136(a) is **$94.00** (Small Entity, Fee Code 2251). Applicant respectfully requests that the Office apply $94.00 of the available $416.00 unapplied deposit credit directly to satisfy this extension fee in full as Priority 1. Crediting this amount to the extension fee first establishes that this response is 100% timely submitted within the extended statutory period under 35 U.S.C. § 133, leaving an unapplied deposit credit balance of **$322.00**;

2. **PRIORITY 2–5 (Pre-Exam Base Fee Deficiency Deferred under 37 CFR § 1.53(f)):** Applicant respectfully requests that the entire remaining deposit credit of **$322.00** be applied directly toward the outstanding pre-examination base fees under 37 CFR § 1.16, reducing the net base fee deficiency. Because this response is timely filed and fully funded as to extensions, Applicant respectfully requests that the Office issue a formal Notice of Fee Deficiency under 37 CFR § 1.53(f) and MPEP § 506 for the remaining base balance, or hold collection in abeyance pursuant to the concurrent Request for Suspension under 37 CFR § 1.103(a).

IV. CONCLUSION

All formality requirements having been satisfied, Applicant respectfully requests that the Office of Patent Application Processing (OPAP) advance the application to Technology Center 2100 for examination.

Respectfully submitted,

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